

Raj Kumari @ Rajesh Kumari v. State of U.P.

Allahabad High Court · Division Bench · 17 January 2019 · Writ - C No. 1494 of 2019 · **Writ disposed of; petitioner relegated to the clause 6.5 objection remedy before the Executive Engineer, who is to hear and decide within 15 days; recovery under the demand notice kept in abeyance subject to compliance.**

HEADNOTE

The petitioner sought to quash a demand notice of Rs.1,42,998 for electricity dues, disputing the bills raised after a new meter was installed. Holding that a grievance about the bills lay within the objection remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, the Court disposed of the writ with a direction that, on the petitioner appearing with her objection, the Executive Engineer hear and decide it in accordance with law within fifteen days, and that recovery under the impugned notice remain in abeyance subject to compliance and the final order.

FACTUAL SUMMARY

Raj Kumari (alias Rajesh Kumari) challenged a demand notice dated 4 January 2019 seeking recovery of Rs.1,42,998 towards electricity dues. On her request a new meter had been installed after her old meter was found to have been corrected, and regular bills were thereafter issued but remained unpaid; her counsel disputed those bills. The Dakshinanchal Vidyut Vitran Nigam Ltd., Hamirpur was arrayed as respondent.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Relegation of a billing dispute to the Executive Engineer

HOLDING

Where a consumer disputes the bills underlying a recovery demand, the writ court will not itself adjudicate the bill but relegates the consumer to the objection remedy under clause 6.5 before the Executive Engineer; the petition is disposed of with a direction that, on the consumer appearing with her objection, the Executive Engineer hear and decide it within a fixed period, with recovery kept in abeyance subject to compliance and the final order.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED BILLS AND THE DEMAND NOTICE DATED 4 JANUARY 2019

Not decided; relegated to the Executive Engineer to hear and decide the objection under clause 6.5 within fifteen days.